

Balvinder Singh Alias Bablu vs Smt. Neha Nangla on 6 September, 2024

Author: Rahul Bharti

Bench: Rahul Bharti

Serial No. 02

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

Case:- RFA No. 36/2024
CM No. 4823/2024

Balvinder Singh alias Bablu, Age 29 years
S/o Rampal Singh Choudhary
R/o Village Balode, Tehsil & District Samba-
184121

.....Appellant(s)/Petitioner(s)

Through: Mr. Avish Sharma, Advocate.

Vs

Smt. Neha Nangla, Age 24 years
W/o Balvinder Singh alias Bablu
D/o Karan Singh
R/o Village Dollian Jattan, Tehsil Marheen,
District Kathua A/P Ward No. 2 Kathua-184101

..... Respondent(s)

Through:

Coram: HON'BLE MR. JUSTICE RAHUL BHARTI, JUDGE

ORDER

(06.09.2024)

1. The petitioner-husband feeling aggrieved of an order dated 09.05.2024 passed by the court of Principal District Judge, Kathua on file No. 40/Misc. instituted on 27.03.2021 thereby granting maintenance pendente lite and litigation expenses in favour of the respondent-wife under section 24 of the Hindu Marriage Act, 1955 is aiming to assail the said order through the medium of the present appeal.

2. On the last date of hearing, in order to test the bonafide of the appellant, this Court came to put a rider for deposit of Rs. 20,000/- with the Registrar Judicial, Jammu for consideration of this case which amount is said to have been deposited yesterday i.e. on 05.09.2024. Accordingly, the learned counsel for the appellant is now seeking indulgence of this Court to take cognizance of the appeal.

3. A perusal of section 28 of the Hindu Marriage Act, 1955 would show that remedy of appeal is provided under section 28(1) in terms whereof all decrees made by the Court in any proceeding under the said Act are appealable as decrees of the court made in exercise of its original civil jurisdiction.

4. Section 28(2) provides the orders against which remedy of appeal is available to an aggrieved party to a matrimonial litigation. Section 28(2) makes orders passed under section 25 or section 26 appealable.

5. Thus, there is an express exclusion of orders passed under section 24 of the Hindu Marriage Act, 1955 in terms whereof an interim maintenance and litigation expenses come to be awarded in favour of a spouse initiating proceedings under the Hindu Marriage Act, 1955.

6. Thus, the present appeal aimed against an order dated 09.05.2024 passed under section 24 of the Hindu Marriage Act, 1955 is not appealable one and, as such, this Court cannot entertain this appeal which is, accordingly, dismissed.

7. The amount deposited by the appellant, if any, before the Registrar Judicial, Jammu pursuant to order dated 23.08.2024 shall be allowed to be withdrawn by the appellant through his counsel.

8. A copy of this order be sent to the court of Principal District Judge, Kathua for being taken on record of file No. 40/Misc.

(RAHUL BHARTI) JUDGE JAMMU 06.09.2024 Shivalee Whether the order is speaking :Yes / No
Whether the order is reportable: Yes / No